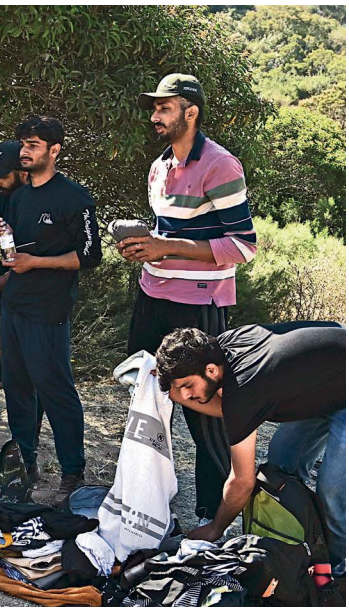


AP

gets those who sponsored these immigrants to cough up the money. Facing immediate deportation are 17,940 Indian illegal immigrants who have exhausted their legal recourse.

The threat of instant mass deportation, however, may be overstated, claims veteran Mumbai-based immigration

17,940

Undocumented Indians at risk of instant deportation

lawyer and consultant Sudhir Shah. He does not believe planeloads of undocumented individuals will be deported from America anytime soon. "Illegal immigrants thrive in the US because Americans want them. Just like Indians sponsor and host others from their state to work long hours at half the mandated wages. Moreover, the Democratic states will oppose this and shelter the illegal immigrants," says Shah, who has been consulting immigration aspirants for over five decades. "Most Indian immigrants stay back with the help of a sponsor and host, where they also work. Through these hosts, they have access to sound legal counsel, who guide them through the labyrinthine process of seeking asylum."

The clincher for this illegal immigration industry to thrive is the ability of asylum-seekers to seek work authorisation, which means 150 days after their asylum application is admitted, they can legally start working. Children can be admitted in schools and basic healthcare facilities and, in some cases, medical insurance is available. "The immigrant families are clear that they will work with their sponsor at least for the first 3-5 years before branching out. During this time, they pay off their debt to their sponsor, learn the ropes, get comfortable with the language and culture while their asylum application progresses," says Ahmedabad-based USA visa consultant Lalit Advani. The average time for an asylum application to reach fruition is about four years, and the maximum is seven years. The new Trump administration though may push for faster disposal of cases. If droves of illegal Indian immigrants are flown back from America, it may turn into an enormous political headache for the Narendra Modi government. ■

administration officials, advocates as "a gradual and predictable phase-down of the visas". That goes well with the MAGA objective of putting "the interest of American workers first".

Another aspect adding to the anxiety of Indians in the USA is how the Trump administration proposes to clean up the green card backlog. US Citizenship and Immigration Services (USCIS) data show that over a million Indians are waiting for green cards. The Congressional Research Service (CRS) estimated that the backlog for Indians in employment-based categories in 2020 was 568,414—which could take 195 years to clear, and that this estimated wait time would more than double by FY2030. This backlog is due to annual caps and per-country limits on the number of green cards issued.

Indians who have gained citizenship in America believe that Trump will not come down too harshly on H-1B visas. Ankur Vaidya, 46, chairman of the Federation of Indian Associations and living in New York for the past 25 years, says, "Even if he does, he will open newer avenues for legal immigration." A construction management professional and an associate at an engineering firm, Vadodara native Vaidya led the team of 26 expatriates from America who attended the Pravasi Bharatiya Divas in Bhubaneshwar on January 9-10. "Just like the Shiv Sena would demand jobs and first right for the Marathis ahead of every Maharashtra poll, Trump played the same trick with Americans and tapped into their votes. American businessmen know that if locals are supposed to work for 40 hours a week, they would not do even 30, whereas highly-skilled Indians would give more than 40 hours at the same remuneration," he says.

WHAT INDIAN IT COMPANIES ARE DOING

Meanwhile, Indian IT companies are taking no chances and preparing their defence to ensure that the H-1B programme endures. Shivendra Singh, VP and head of Global Trade Development at Nasscom, argues that the notion that H-1B guest workers take away local jobs or are employed at lower wages, which in turn causes local unemployment, runs contrary to actual data. He says that the top eight Indian IT companies accounted for 7,482, or 8.8 per cent, of the 85,000 fresh H-1B visa petitions approved for FY25, the cap for which was reached in December 2024. American tech firms accounted for a larger share. "It's an issue where there is a gap in the USA and it is being bridged by H-1B visas. And even if it is lesser numbers, they still have a critical role to play," Singh says.

IT industry veteran and former Infosys board member T.V. Mohandas Pai argues that the reason for America's digital domination of the world is the availability of high-quality human, physical and financial capital. Indians handle a large part of the technology software of all major American corporations. "The USA is not producing enough software people," says Pai. "India has been the force multiplier for it. Critics say we are underpaying Indians and taking away American jobs. It is totally wrong because you have to pay comparable wages